

# Sateesh Kumar Jaiswal v. State of U.P.

Allahabad High Court · Division Bench · 1 August 2022 · WRIT - C No. - 19855 of 2022 · **Writ disposed; 6.8 objection directed with stay of recovery.**

## HEADNOTE

A challenge to a Tehsildar recovery notice was disposed of without examining merits. The consumer was relegated to an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, with a limited stay of coercive recovery.

## FACTUAL SUMMARY

The petitioner, a consumer, sought certiorari to quash a recovery notice dated 23 May 2022 issued by the Tehsildar Sadar, Allahabad, and a mandamus restraining coercive action on that demand. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The Court recorded that statement and did not examine the underlying demand.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.8

6.8-objection-alternate-remedy

#### HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, respondent No. 2 shall decide it in accordance with law within the next four weeks after hearing; coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

## PRINCIPLE TAGS

**pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay** The Court directed a time-bound Para 6.8 objection, a hearing, and a limited stay of coercive recovery on the Tehsildar demand. ¶ 1

**para-6.8-objection-alternate-remedy** The writ was closed without merits by relegating the consumer to the statutory Para 6.8 objection. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 23 MAY 2022 AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on merits. ¶ 1